

give a *lien* to the principal upon the tortious acquisition ; but the Court said, it was impossible that an abuse of trust could confer any right on the person abusing it, or those claiming in privity with him (*d*).

[9. **Stockbroker selling.** — So, if a trustee employ a stockbroker to sell out consols and invest the proceeds on behalf of the trust estate, the money arising from the sale is trust money, and may be followed into the hands of the trustee in bankruptcy of the broker (*e*).

Where money was borrowed for the purpose of purchasing a specific property which was to be mortgaged to secure the loan ; and the borrower in lieu of applying the money for the specific purpose paid it into a bank and drew upon it, and the borrower subsequently became bankrupt, it was held that the lender could follow and claim so much of the money as remained in the bank unapplied.¹]

10. **In whose name actions must be brought to recover the trust estate from the creditors' trustee.** — Where the legal property does not pass, any action against the creditors' trustee must be brought by the bankrupt himself, for he is the person possessed of the legal right (*f*) ; but, in the case of a *factor*, an action may also be brought by the principal, for the absolute property remains with the employer, and a special property only vests in the agent (*g*). But, if *bills* be remitted to a factor, and made payable to him or his order, it has been doubted whether the property does not so vest in the factor, that no action of trover can be maintained by the principal (*h*).

11. **Where the trust estate has become amalgamated with the trustee's other property, the cestui que trust must prove for the amount.** — If the property possessed by the bankrupt

(*d*) Taylor v. Plumer, 3 M. & S. 574, per Lord Ellenborough ; [Harris v. Truman, 7 Q. B. D. 340 ; 9 Q. B. D. 264.]

[(*e*) *Ex parte* Cooke, 4 Ch. D. 123.]

(*f*) Winch v. Keeley, 1 T. R. 619 ; Carpenter v. Marnell, 3 B. & P. 40.

(*g*) L'Apostre v. Le Plaistrier, cited Copeman v. Gallant, 1 P. W. 318 ; Delauney v. Barker, 2 Stark. 539 ; Boddy v. Esdaile, 1 Car. 62.

(*h*) *Ex parte* Dumas, 2 Ves. 583.

¹ Gibert v. Gonard, 54 L. J. N. S. Ch. 439.